

**BOARD OF ADA COUNTY COMMISSIONERS
MINUTES OF THE PUBLIC HEARING
WEDNESDAY, JULY 30, 2025
6:00 P.M.**

The Board of Ada County Commissioners met this date in the Ada County Public Hearing Room of the Ada County Courthouse Complex. Staff members present: Richard Beck, Leon Letson, Elias Sandoval-Clarimon and Rachel Riggs, Development Services; and Ax Yewer, Prosecuting Attorney's Office. Minutes Recorder: Judy Morris.

I. IN THE MATTER OF CALL TO ORDER:

Commissioner Rod Beck called the meeting to order at 6:00 p.m.

II. IN THE MATTER OF ROLL CALL:

Commissioners Rod Beck, Ryan Davidson and Tom Dayley were present.

III. IN THE MATTER OF CHANGES TO THE AGENDA:

There were no changes to the agenda.

IV. IN THE MATTER OF NEW BUSINESS:

- **202402581-ZOA, ADA COUNTY DEVELOPMENT SERVICES:** Zoning Ordinance Text Amendment to repeal and replace Title 8 of the Ada County Code - Ada County Zoning. Leon Letson, Community Planning Manager at (208) 287-7950 or lletson@adacounty.id.gov

R. Beck opened the public hearing.

L. Letson presented the Staff report. He read a proposed motion for the Board to consider, if they chose to approve the zoning ordinance rewrite this evening.

Dave Wymond presented testimony supporting solar energy farms on farmland and argued its energy and financial benefits to communities.

Tim Wagner testified against any development that affects prime farmland, existing infrastructure and public services.

Max Stein presented testimony opposing limiting any development on private property.

Alex Karagianes testified that he currently has a lease option on a solar project on his property that allows sheep to graze while the project is active.

Tom Ravgianos presented testimony supporting solar farms, stating the recommendations from the Planning and Zoning Commission (P&Z) are too restrictive and over-reaching.

Krista West presented testimony supporting the right of property owners to do what they wish with their land.

Kelly Dickson testified in opposition to limiting the ability of property owners to lease or sell their property for solar development restating previous testimony regarding its energy and financial benefits.

Nicole Stearns raised concerns that the proposed zoning ordinance regarding solar farms infringes on the rights of property owners.

Drew Pijhl repeated previous testimony against restricting property owner rights and the need for solar energy.

Norm Brown testified on behalf of several property owners concerned about restricting use of their property based on their farmland classification.

Judy Appleby provided testimony opposing the definition and classifications of farmland.

The Board and Staff discussed differences between current and proposed Staff recommendations and P&Z's recommendations.

Brittani Weber testified reiterating previous testimony opposing the proposed ordinance restricting development of any kind on farmland.

Paul Seideman presented testimony supporting proposals for energy production projects being individually reviewed on their own merits.

Renee Wiehe reiterated previous testimony opposing restricting solar development.

James Van Dunten testified opposing the definitions of land in the ordinance and restrictions on agricultural property.

Alison Boldridge provided testimony supporting solar energy on farmland to provide needed income and electricity to support property owners.

Jake Melder presented testimony opposing limiting solar development and encouraging projects be reviewed on an individual basis.

Luke Brown restated testimony supporting solar farms and the rights of property owners.

David Wagner advised that he is planning a large solar farm that will bring many jobs and income to the area.

David Boldridge reiterated previous testimony supporting solar projects on farmland.

Tom Wordell testified supporting solar energy rather than housing on farmland.

Dawn Ferdinand presented testimony opposing solar developments on farmland, arguing solar farms have a negative impact on the underlying property and landscape.

Bill Fletcher presented testimony opposing the restricted farmland language.

Pam McDonald echoed previous testimony supporting the development of solar farms and property owner rights.

Dave McDonald testified in support of solar farms.

David Garman restated testimony regarding the increased need for energy resources and preserving rights of property owners.

Mark Kieckbusch reiterated testimony supporting property owners having the option to develop their property as they choose.

Shiva Rajbhandari presented testimony supporting solar development.

Jacob Anderson restated prior testimony supporting rights of property owners.

Nick Terrell repeated testimony allowing property owners to lease or sell their land for solar development.

Kristal West testified in support of Staff's recommendations but raised concerns with the restrictions and definitions contained in P&Z's proposed language.

Leatha Thayer reiterated testimony opposing the definition of farmland.

Ryan Brodien presented testimony supporting solar farms south of the airport due to the attributes of land in the area in contrast with the definition of Statewide Important Land.

Katherine Horner restated previous testimony regarding the language of the ordinance relating to solar projects.

Josh Leonard urged that solar developments be dealt with on a case-by-case basis and opposed P&Z's recommendations.

Decker Rolph stated he opposed P&Z's recommendations.

Rob Hanson reiterated testimony supporting property owners' rights.

Anne Potcher echoed previous testimony against limiting property owners' rights.

Patricia Dunlop testified against the ban of solar developments on farmland.

Denis Dunlop presented testimony supporting solar developments be looked at on a case-by-case basis.

Anita Overall testified supporting the restrictions on solar development that may infringe on surrounding property owners' rights.

Desiree Jones restated testimony supporting the proposed restrictions proposed by P&Z.

Jon Wardle, of Brighton, provided testimony requesting an amendment to the proposed ordinance allowing a Planned Unit Development for the Ten Mile Creek Planning Area.

The Board and J. Wardle discussed the proposed zoning amendment and Boise's current moratorium on sewer line extensions.

Jackie Moffis testified in support of the zoning ordinance rewrite as proposed.

Bob Nettleton testified raising concerns relating to P&Z's solar development recommendations and suggested replacement language.

Greg Servheen restated support of solar projects.

Abigail Kaage testified in support language drafted by Staff regarding farmland and opposed P&Z's proposed language.

Adrian Gallo testified that the soil maps currently used to define farmland are old and outdated and property owners know what their lands are capable of.

Carol Vidales testified on behalf of the Southwest Ada County Alliance as well as herself individually, requesting additional language be added to the proposed ordinance addressing neighborhood meetings; definitions; notifications and other irregularities. She also requested the adoption of the ordinance be postponed to allow additional public input.

Carlos Vidales raised concerns that the total restructure and rewrite of the ordinance has made it difficult to review the changes.

Jeremy Chou, representing Clenera, testified against the ordinance, stating it takes away the Board's discretion to handle solar projects on a case-by-case basis. He advised that his firm did submit some proposed language for the ordinance for consideration.

R. Davidson and J. Chow discussed Clenera's proposed language.

Mitchell Taylor restated previous testimony supporting Staff's proposed language regarding solar development.

Leslie Vander Schaaf testified in support of P&Z's proposed recommendations relating to the farmland definitions and solar developments.

Dustin Vander Schaaf stated he supports the proposed language recommended by P&Z.

Kayla Vander Schaaf reiterated previous testimony supporting P&Z recommendations regarding farmland and solar development.

Ted Vander Schaff testified in opposition to locating solar developments on farmland.

Karen Nichols stated she agreed with T. Vander Schaff.

Bob Hill said he agrees with T. Vander Schaff.

Ron Zimmerman testified to the challenges of solar capacity and decommissioning.

Chris Vander Woude supported P&Z's recommendations.

Emily Truebner testified in support of P&Z's recommendations.

Derek Vander Schaaff reiterated previous testimony supporting P&Z's recommended language regarding solar development.

Cindy Giesen testified supporting P&Z's recommended language regarding solar development and locations. She raised concerns regarding energy storage.

Adam Gustafson argued that zoning protects all property owners' rights.

Matthew Walsh restated prior testimony opposing the solar restrictions due to the increased need for additional energy resources.

Dustin Thompson echoed testimony limiting solar development on farmland.

Dustin Ferdinand testified supporting the ordinance restrictions against solar development on farmland.

Dennis Ferdinand reiterated testimony supporting P&Z's recommended restrictions for solar development.

Aiden Shingler testified supporting P&Z's solar restrictions.

James Burch, P&Z Commissioner, explained the reasons P&Z added the additional language defining farmland and restricting solar development on it.

Nate Murphy, P&Z Commissioner, made suggestions for additional changes to the rewrite relating to re-zones; temporary use permits and solar restrictions.

Justine Krivanec restated previous testimony regarding the negative impacts of solar projects on agricultural land.

Kayla Stone echoed testimony suggesting more restrictive language be added to prevent any solar project on farmland.

Cole Woolford testified that location of solar projects depends on location of utility infrastructure which tend to be on prime farmland.

Josh Cook stated he supports P&Z's language regarding solar development.

L. Letson presented Idaho Fish and Games' recommendation to include rangeland and fish and wildlife habitat of statewide and/or local importance in the proposed solar projects restricted locations.

R. Beck closed the public hearing.

The Board advised that they need time to consider the testimony presented during this hearing. They clarified the public hearing is closed and that no additional documents or communication will be accepted on this matter.

ACTION: R. BECK MOVED TO TABLE APPLICATION NO. 202402581-ZOA, ADA COUNTY DEVELOPMENT SERVICES TO THE SEPTEMBER 10, 2025, PUBLIC HEARING. R. BECK, AYE, R. DAVIDSON, AYE, AND T. DAYLEY, AYE. THE MOTION CARRIED UNANIMOUSLY.

V. IN THE MATTER OF ADJOURNMENT:

There being no further business to come before the Board on this date, the meeting was adjourned at 10:22 p.m.



Rod Beck, Chair

ATTEST:



Trent Tripple, Ada County Clerk